for under this part if, in the judgment of the State Supervisor, there is evidence of a competitive interest in the land, or if the Geological Survey finds that the land contains a deposit in paying quantities of the mineral to be leased.

§ 199.80 *Disposal of materials.* Materials within the public lands covered by the regulations in this part which are not subject to lease hereunder shall be subject to disposal under the Materials Act of July 31, 1947 (61 Stat. 681; 43 U. S. C. 1185), as amended, subject to the conditions and limitations on occupancy and operations prescribed for leases in this part.

§ 199.81 *Distribution of proceeds.* All receipts derived from permits or leases issued under §§ 199.61 to 199.64 and 199.70 to 199.81 will be deposited by the Bureau of Land Management into the same funds or accounts in the Treasury for distribution in the same manner as prescribed as to national forest land for other national forest revenue by 16 U. S. C., sections 499, 500 and 501 and as prescribed as to reclamation land for other reclamation revenue by 43 U. S. C., section 394.

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

AUGUST 4, 1955.

[F. R. Doc. 55-6455; Filed, Aug. 9, 1955; 8:46 a. m.]

Appendix C—Public Land Orders

[Public Land Order 1202]

[1635856]

ALASKA

REVOKING EXECUTIVE ORDER 7622 OF MAY 29, 1937 AND THE DEPARTMENTAL ORDER OF DECEMBER 12, 1939

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, and Section 11 of the act of March 3, 1891 (26 Stat. 1099; 48 U. S. C. 355), it is ordered as follows:

1. Executive Order No. 7622 of May 29, 1937, temporarily withdrawing the lands in U. S. Survey No. 1946, containing 9.37 acres, from settlement, location, sale or entry, for use by the United States Indian Service Hospital at Unalaska, Alaska, is hereby revoked.

2. The Departmental order of December 12, 1939, reserving lots 6 and 7, Block 11, U. S. Survey No. 1992, Townsite of Unalaska, Alaska, for hospital purposes, is hereby revoked. The land described contains 0.48 acre. The lots will be reappraised and offered at public sale pursuant to the laws and regulations relating to trustee townsites in Alaska.

3. This order shall not otherwise become effective to change the status of the lands released by paragraph 1 until 10:00 a. m., on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition and selection under the public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

4. Veterans' preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended, may be filed on or before 10:00 a. m. on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, filed on or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries covering the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

ORME LEWIS,
Assistant Secretary of the Interior.

AUGUST 4, 1955.

[F. R. Doc. 55-6456; Filed, Aug. 9, 1955; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 8]

POWERS OF ATTORNEY

NOTICE OF PROPOSED RULE MAKING

A study of the Customs Regulations relating to powers of attorney indicates that certain requirements of the regulations have in many instances made the use of powers of attorney impracticable. As a result, a large number of customs transactions are made in the name of a nominal consignee, rather than in the name of the actual consignee. In order to relieve restrictions on the use of powers of attorney to the extent that the revenue will not thereby be endangered, it is proposed to amend § 8.19 of the Customs Regulations (19 CFR 8.19) as set forth in tentative form below. Prior to the final adoption of such amendments, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing to the Commissioner of Customs, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed amendments are as follows:

Section 8.19 is amended as follows:

1. Paragraph (a) is amended to read as follows:

(a) A power of attorney may be executed for the transaction of a specified part or for all the customs business of the principal, except that a separate power of attorney on customs Form 5295 or 5295–A shall be required for filing protests.[30] Customs Form 5291 may be used by individuals and customs Form 5293 by corporations for giving powers of attorney to transact customs business. If a customs power of attorney is not on a prescribed customs form, it shall be either a general power of attorney with unlimited authority or a limited power of attorney as explicit in its terms as is the prescribed customs form. If for the execution of sealed instruments, it shall be under seal. A customs power of attorney to a minor shall not be accepted. A customs power of attorney executed under authority of another power of attorney shall be accepted if the grantor of the original power of attorney is a non-resident and such original power contains express authority from the principal for the appointment of a subagent or subagents, but customs powers of attorney of residents shall be without power of substitution except for the purpose of executing shippers' export declarations. A subagent so appointed cannot delegate his authority. A customs power of attorney executed in favor of a licensed corporate customhouse broker may specify that the power of attorney is granted to the corporation to act through any of its licensed officers and any employees specifically authorized to act for such corporation by power of attorney filed by the corporation with the collector of customs.

2. Paragraph (e) is amended to read as follows:

(e) When a power of attorney is executed by an officer of a resident corporation, a certificate of the secretary, assistant secretary, or other corporate officer showing the authority of such officer to execute the power of attorney shall be executed on customs Form 5293 under seal. However, a power of attorney shall not be required when the person signing customs documents on behalf of a resident corporation is known to the collector to be the president, vice president, treasurer, or secretary of the corporation. The above-mentioned certificate shall read as follows:

CERTIFICATE [1]

I, _____ certify that I am the _____ of _____, organized under the laws of the State of _____; that _____, who signed this power of attorney on behalf of the donor, is the

[1] The certificate shall be executed by an officer other than the officer who signs the power of attorney.

---------- of the said corporation; and that said power of attorney was duly signed, sealed, and attested for and in behalf of said corporation by authority of its governing body as the same appears in a resolution of the Board of Directors passed at a regular meeting held on the ---------- day of ----------, now in my possession or custody. I further certify that the resolution is in accordance with the articles of incorporation and bylaws of said corporation.

In Witness Whereof, I have hereunto set my hand and affixed the seal of said corporation, at the City of ----------, this ---------- day of ----------, 19--.

3. A new paragraph (j) is added reading as follows:

(j) An individual (but not a partnership, association, or corporation) who is not a regular importer may execute a power of attorney applicable to a single non-commercial shipment by writing, printing, or stamping and subscribing on the invoice the following statement:

---------- of ----------
Name Address

is hereby authorized to execute, as an agent who has knowledge of the facts, pursuant to the provisions of section 485 (f), Tariff Act of 1930, as amended, the consignee's and owner's declarations provided for in sections 485 (a) and (d), Tariff Act of 1930, and to enter on my behalf or for my account the goods described in the attached invoice which contains a true and complete statement of the facts concerning this shipment.

Date ----------, 19--.
Signature of importer ----------
Address ----------

The collector may, in his discretion, accept powers of attorney provided for in this paragraph which designate relatives of the importer or persons not regularly engaged in customs or freight forwarding business.

(R. S. 161, 251, sec. 624, 46 Stat. 759; 5 U. S. C. 22, 19 U. S. C. 66, 1624)

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: August 2, 1955.

H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 55-6476; Filed, Aug. 9, 1955; 8:51 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 52]

FROZEN CONCENTRATED ORANGE JUICE [1]

UNITED STATES STANDARDS FOR GRADES

Notice is hereby given that the United States Department of Agriculture is considering amending the United States Standards for Grades of Frozen Concentrated Orange Juice (7 CFR 52.1581 to 52.1593) under the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.) as hereinafter set forth.

The proposed amendment provides for: a re-wording of the footnote pertaining to this subpart, changes in the minimum Brix value for Style I, without sweetening ingredient added, and a re-wording of the definition for "reconstitutes properly."

All persons who desire to submit written data, views, or arguments for consideration in connection with the proposed amendments should file the same with the Chief, Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than 30 days after publication hereof in the FEDERAL REGISTER.

The proposed amendment is as follows:

1. Amend footnote 1 to this subpart to read as follows:

[1] Compliance with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act, or with applicable State laws and regulations.

2. Amend paragraph (a) of § 52.1582 to read as follows:

§ 52.1582 *Styles of frozen concentrated orange juice*—(a) *Style I, without sweetening ingredient added.* The Brix value of the finished concentrate shall be not less than 41.8 degrees nor more than 44.0 degrees.

3. Amend paragraph (c) of § 52.1590 to read as follows:

(c) "Reconstitutes properly" means that the reconstituted juice is practically free from pronounced graininess of a gelatinous nature; and that in approximately 250 ml. of the reconstituted juice, after standing four (4) hours at a temperature of not less than 68 degrees Fahrenheit in a clear glass cylinder (approximately 1¼ inches in diameter), there may be a noticeable separation of colloidal or suspended matter and any resulting zone of greater clarity shall be definitely turbid and not clear or transparent.

Dated: August 5, 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator, Marketing Services.

[F. R. Doc. 55-6480; Filed, Aug. 9, 19.. 8:52 a. m.]

[1] Compliance with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act, or with applicable State laws and regulations.

[7 CFR Part 58]

GRADING AND INSPECTION OF DAIRY PRODUCTS

MINIMUM SPECIFICATIONS FOR APPROVED PLANTS MANUFACTURING, PROCESSING, AND PACKAGING UNDER UNITED STATES DEPARTMENT OF AGRICULTURE INSPECTION [1]

Notice is hereby given that the United States Department of Agriculture is considering the issuance, as hereinafter proposed, of Minimum Specifications for Approved Plants Manufacturing, Processing, and Packaging Dairy Products Under United States Department of Agriculture Inspection pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087; 7 U. S. C. 1621 et seq.).

The proposed minimum specifications will supersede the current provisions of "Instructions Governing Plants Operating as Official Plants Processing and Packaging Dairy Products." These revised minimum specifications will be used by the Department in providing the dairy industry with voluntary inspection and grading service applicable to manufactured or processed dairy products. Such inspection and grading service will be provided to the industry only upon request by the applicant. Full cost of the service will be borne by the company or organization utilizing same.

Revision of these minimum specifications is based on the Department's experience in providing voluntary inspection and grading service in the past and on the basis of many informal discussions and suggestions by all major segments of the dairy industry.

All persons who desire to submit written data, views, or arguments in connection with this proposed revision should file the same in triplicate with the Chief of the Inspection and Grading Branch, Dairy Division, Agricultural Marketing Service, U. S. Department of Agriculture, Room 2977 South Building, Washington 25, D. C., not later than 30 days following publication of this proposal in the FEDERAL REGISTER. The proposed minimum specifications follow:

DEFINITIONS

Sec.
58.101 Approved laboratory.
58.102 Approved plant.
58.103 Bactericidal treatment.
58.104 Cream.
58.105 Dairy products.
58.106 Grader.
58.107 Inspector.
58.108 Milk.
58.109 Rules and regulations.
58.110 USDA.

PURPOSE

58.120 Approved plants operating under USDA inspection.

APPROVED PLANTS

58.122 Survey and approval.
58.123 Suspension of plant approval.

PREMISES, PLANT, FACILITIES, EQUIPMENT AND UTENSILS

58.127 Premises.
58.128 Building.
58.129 Facilities.
58.132 Equipment and utensils.

PERSONNEL, CLEANLINESS AND HEALTH

58.135 Cleanliness.
58.136 Health.

SPECIFICATIONS FOR RAW MILK AND FARM SEPARATED CREAM

58.142 Transportation and protection of raw material while in transit.
58.143 Specifications for raw milk.
58.144 Specifications for farm-separated cream.
58.147 Alternate quality programs.

OPERATIONS AND OPERATING PROCEDURES

58.150 Clean and sanitary methods.
58.151 Segregation of raw material.
58.152 Raw material deterioration.
58.153 Milk or cream storage.
58.158 Pasteurization.

[1] Compliance with these specifications does not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.